

25STCP03324 25STCP03324

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP03324 Hearing Date: August 26, 2026 Dept: 833

Monique Gaxiola, Case No. 25STCP03324

Hearing:

August 26, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Los

Angeles County Civil Service Judge:

Joseph Lipner

Commission

and

Real-Party-in-Interest

Los Angeles County

Fire

Department

Order Denying Petition

for Writ of Mandate

INTRODUCTION

Petitioner Monique Gaxiola ("Petitioner")

moves for a writ of mandate directing the Court to overturn the Los Angeles Civil Service Commission's ("Respondent") decision upholding the decision of real-party-in-interest Los Angeles County Fire Department (the "Department") decision to dismiss Petitioner.

The Court DENIES the petition for writ of mandate.

BACKGROUND

A.

Employment

Background

On

approximately June 5, 2021, Petitioner graduated from the Fire Academy and was assigned to her first fire station as a probationary firefighter, Station 34.

(AR 2184.) Petitioner served as a probationary firefighter at Station 34 until approximately November 30, 2021, and thereafter was assigned to her second fire station, Station 86. (AR 2197.)

During

probation, supervising fire captains and battalion chiefs were required to determine whether Petitioner could demonstrate an acceptable level of competence as a firefighter. (AR 2876; 3187; 3458.) The probationary period served as a trial work period to assess whether Petitioner could perform the duties of the position and adjust to the Department's operational standards. (AR 1908.)

Monthly

probationary status reports ("PSR") are written by the probationary firefighter's direct supervisor based on their observations of their assigned probationary firefighter and on input from other captains who have supervised and/or observed the probationary firefighter's performance and signed off by the supervising Battalion Chief. (AR 1745-1788; 2880-81; 3684-86.) PSRs with an unsatisfactory rating are further reviewed by Employee Relations and then a meeting is held with the probationary firefighter with the Captain and the Battalion Chief to review and counsel the probationary firefighter on the performance deficiencies. (AR 3009; 3030; 3185; 3186.)

B.

Petitioner's

Poor Performance on Probation

Petitioner

received overall unsatisfactory ratings during multiple months of probation, including the later months immediately preceding her release. (AR 1745-1788.) She also received unsatisfactory ratings in Drills and Emergency Work, the two most important and critical evaluation categories for a firefighter. (AR 1656.) Petitioner lacked basic knowledge and competency in firefighting skills, such as how to use a fire hose, which raised serious safety concerns for herself, her peers, and the public. (AR 1661; AR 2926-29; 2937; 3205-3206; 3466-3470; AR 3616-3617; AR 3710-3712.) She was also deficient in the subjects of "crew continuity", "basic radio operations", "hydration", "Personal Protective Equipment (PPE)," and "patient assessments." (AR 2811-2815 [Petitioner failed to properly deploy a 300-foot pre connect hose line to stop a fire that was spreading into the garage and threatening the adjacent house, dropped most of the hose in the driveway where it became tangled, failed to distinguish between hose lines, was not wearing required firefighter gloves to protect her safety, and sprayed water in the wrong direction, including toward other firefighters]; AR 2893-2896 [Petitioner delaying emergency response by failing to move all required PPE as directed by Captain Singleton and questioning his order; moving from her assigned position without direction, disrupting crew continuity]; AR 3413-3415 [Petitioner coached and counseled on the need to wear proper PPE]; AR 3466-3470 [Petitioner could not maintain pace while ascending a hill, fell significantly behind the crew who ended up having to wait 15 minutes for her to join them, and caused Captain Breen to call Battalion Chief Aronson to express serious safety concerns for her and the crew]; AR 3460-3462 and 3491-3493 [Petitioner hindered crew continuity by taking a break during the fighting of a fire and not telling anyone where she was].)

Petitioner

repeatedly failed to follow captains' instructions and orders during emergency incidents. (AR 1907-2000.) Petitioner was given feedback after deficient drills and emergency incidents. (AR 1998-2043.) Captain Nieto, who was Petitioner's immediate supervisor, provided a personalized drill calendar to help Petitioner prepare for upcoming drills. (AR 1648; 2197; 2942-2943.) She was given additional time to prepare certain drills and additional opportunities to complete evolutions. (AR 2890-2891; 2920; 2925-2926.) Despite this support, Petitioner continued to perform below standards. (AR 1985-2000.)

Petitioner

notes that her unsatisfactory performance reviews came while under Captain Nieto. When other captains supervised Petitioner, she received a competent performance review. (AR 2221-2225.)

C.

Petitioner's

Absences

Petitioner

experienced multiple leaves of absences, necessitating an extension of her probationary period. (AR 2060-2066.) At least one medical leave was a result of a diagnosis of rhabdomyolysis, a condition involving breakdown of muscle tissue and release of harmful proteins into the bloodstream. (AR 2566; 3462; 3464.) Another medical leave as a result of an elevated heart rate. (AR 2570.)

After Petitioner returned from one leave of absence, Department personnel observed her struggling with core duties. (AR 3195-3197; 3207.) The Department convened an interactive process meeting to determine whether any medical condition was affecting her ability to perform and whether any reasonable accommodation was needed. (AR 2111.) During that meeting, Petitioner stated she felt "Okay," felt "100%," and did not need an accommodation. (AR 3196, 3260-3261.) She said she simply needed to "get out there and do the job." (AR 3260-3261.)

D.

Petitioner's

Allegations of the County violating the law

Petitioner

filed several County Policy of Equity complaints. (AR 2067-2109.) The complaint alleged that Petitioner had been discharged because of her gender, medical condition, and/or engagement in a protected activity. (AR 634.) Specifically, Petitioner alleged that Captain Nieto had been filming her without consent and had not done the same with male probationary firefighters. (AR 2305-2306.) Petitioner also alleged that Captain Nieto unfairly scrutinized her work in the field and critiqued her phone usage. (AR 2305-2309, 2593-2594.)

Later complaints filed in

December 2022, after her probationary release in November 2022, were investigated by the Department of Human Resources County Equity Investigations Unit and reviewed by the County Equity Oversight Panel and the allegations were found unsubstantiated and the matters closed. (AR 2112-2140.)

E.

After

Petitioner's Termination

Petitioner

was terminated on November 26, 2022. (AR 634.)

Petitioner

appealed to the Civil Service Commission under Los Angeles County Civil Service Rule 25, which is a rule that permits probationary and other at-will employees to challenge disciplinary actions (including terminations) only if they can prove that non-merit based factors, such as animus based on gender and similar protected classes, caused the disciplinary action. (AR41-AR42.)

The

key question as laid out by Hearing Officer Brent Rosenbaum was the following: was the Petitioner's discharge during probationary period the result of discrimination based upon gender, sex, disability, or medical condition of Civil Service Rule 25? If so, what was the appropriate remedy? (AR 2168.)

The

hearing officer found that the probationary discharge was appropriate and recommended that the probationary discharge be upheld. (AR 620.) He explained that Petitioner did not testify credibly; other witnesses had testified credibly; Petitioner did not prove discrimination based upon gender, sex, disability, or medical condition; and Petitioner's probationary discharge was appropriate. (AR 634-635.)

On

December 23, 2024, Respondent issued its Notice of Proposed Decision accepting Rosenbaum's findings and recommendations and advising the parties that any objections to the Proposed Decision were due on January 13, 2025. (AR 644.) On January 13, 2024, Petitioner filed Objections to the Findings of Fact, Conclusions of Law and Recommendation of Hearing Officer. (AR 645-668.) On May 14, 2025, after taking Petitioner's Objections and the Department's Response into

consideration, the Commission voted unanimously to sustain the recommendation of Hearing Officer Rosenbaum. (AR 725-727.)

The
petition followed.

LEGAL STANDARD

Under Code of
Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

Because the
decision to discharge Petitioner concerns a fundamental vested right, the independent judgment standard applies to the factual findings made by Respondent. (See *Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 314.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (*Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143.) The court may draw its own reasonable inferences from the evidence and make its determinations as to the credibility of witnesses. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal. App. 4th 860, 868.) “In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817; see also Evid. Code § 664.)

Petitioner bears
the burden of proof to demonstrate, by citation to the administrative record, that the weight of the evidence does not support the administrative findings. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11

Cal.3d 28, 32; *Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal. App. 2d 129, 137.) Petitioner “must identify (with citations to the record) the factual findings made by the board that he or she is challenging and demonstrate (with citations to the record) why those factual findings were against the weight of the evidence.” (*Shenouda v. Veterinary Medical Bd.* (2018) 27 Cal.App.5th 500, 513.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (*Fox v. Erickson* (1950) 99 Cal.App.2d 740, 742 (*Fox*).) When an appellant challenges “the sufficiency of the evidence, all material evidence on the point must be set forth and not merely [his] own evidence.” (*Toigo v. Town of Ross* (1998) 70 Cal.App.4th 309, 317.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.”” (*Christensen v. Lightbourne* (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See *State Farm Mut. Auto. Ins. Co. v. Quackenbush* (1999) 77 Cal.App.4th 65, 77.) In addition, “[a] challenge to the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (*Nasha L.L.C. v. City of Los Angeles* (2004) 125 Cal.App.4th 470, 482.)

DISCUSSION

A. The proposed decision did not lack independence

Petitioner’s first argument is that the proposed decision from the hearing officer lacks independence because it closely resembles the language used by the Fire Department in its briefing. This argument is unpersuasive.

First, there is no requirement that prevents a hearing officer (or this Court) from using portions of a brief if the record accurately supports the statements in the brief. The question under Section 1094.5 is whether Respondent proceeded lawfully and whether its findings and decision are supported by evidence.

The Court finds that the hearing officer held eleven days of hearing, heard testimony from multiple witnesses, reviewed exhibits, and made express credibility findings. The hearing officer complied with Section 1094.5, and that is what matters.

Petitioner's second argument is that the hearing officer committed an error by law by treating the equity investigation's outcome as dispositive of the Rule 25 claim. This argument is unpersuasive for two reasons. First, Petitioner cites a quote that is allegedly on AR 624, but does not actually exist. Second, the equity report stated, "the facts in support of the allegations contained in the [County Policy of Equity ("CPOE")] complaints were unsubstantiated concerning a violation of the CPOE. Therefore, this CPOE matter is closed." (AR 2139.) To apply the McDonnell-Douglas framework as Petitioner suggests, there must be some circumstance that suggests discriminatory motive. (AR 612.) But if no facts support discrimination, there is no reason to apply the McDonnell-Douglas burden-shifting framework.

B. Petitioner did not prove sex discrimination

Petitioner's second argument is that she experienced sex discrimination.

To establish a prima facie discrimination claim, Petitioner was required to prove that she was in a protected class, was performing competently, suffered an adverse action, and that the adverse action occurred under circumstances supporting an inference of discriminatory motive. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 355.)

Petitioner claims that Captain Nieto filmed her during a drill but did not film a male probationary firefighter. (AR 2305-2306.) Exercising its independent judgment, the Court finds that this is not sex discrimination under the facts of this case. Multiple Department witnesses testified that filming a probationary firefighter during a drill can be used as a coaching tool to help the employee visualize what they are doing wrong and that there is no policy that prohibits filming a probationary firefighter. (AR 2957-2960; 3479-3480; 3605; 3746.) Petitioner's argument that there is sex discrimination purely as a result of a "differential

exercise of discretion” is without any legal authority. (Reply, 6:12-14.)

Therefore, it is not a persuasive argument.

Petitioner

also claims that she received an individualized drill schedule that was randomly selected and never disclosed. However, the evidence established that Captain Nieto provided a personalized drill calendar to assist Petitioner and help her prepare for upcoming drills. (AR 1648, 2942-2943.)

Petitioner

failed to prove that any drill assignment was based on sex or gender, or that male probationary firefighters with comparable performance problems on hose deployment, pumping operations, PPE use and crew continuity were treated more favorably. Indeed, Petitioner relied solely on her own speculation, beliefs, and inferences at the hearing. That is not sufficient to defeat the evidence coming from the Fire Department.

Exercising

its independent judgment, the Court finds that the evidence does not suggest Petitioner was the victim of sex discrimination.

C. Petitioner did not prove disability
discrimination

A

disability discrimination claim requires evidence that the employee had an actual or perceived disability, was otherwise qualified to perform the job, and suffered an adverse action because of the disability. (Choochagi v. Barracuda Networks, Inc. (2020) 60 Cal.App.5th 444, 458.)

Petitioner

argues that she received her first unsatisfactory rating within fifteen days of hospitalization for rhabdomyolysis and that Captain Nieto then required dual specialist clearances never previously imposed. (AR 2571-2572, 3531-3532, 3535.) However, timing alone does not overcome the specific facts shown at the hearing showing that the unsatisfactory evaluation was based on performance and safety concerns.

The

evidence showed that Petitioner's leave periods were not counted against her

probationary evaluation. Instead, her probation was extended in accordance with Civil Service, and the periods when she was unavailable for observation were excluded from the evaluation period. (AR 2060-2066, 2881.) When Petitioner returned from leave and Department personnel observed that she continued to struggle with core duties, the Department convened an interactive process meeting. (AR 2111, 3195-97, 3207.) The evidence showed the purpose of that meeting was to determine whether any medical condition was affecting Petitioner's ability to perform and whether any reasonable accommodation was needed. (Ibid.) During the meeting, Petitioner stated she felt "Okay," felt "100%," had been cleared by her doctor, and did not need any accommodation. (AR 3196; 3260-3261.)

Third,

the performance concerns identified by the Department were not limited to conduct that could be attributed to a medical condition. The evidence showed repeated deficiencies in knowledge, preparation, judgment, safety procedures, and execution of basic firefighter tasks. (AR 1907-1997.) Petitioner struggled with drills, failed to present assigned materials competently, failed to identify equipment, failed to timely complete evolutions, failed to follow instructions during incidents, and failed to maintain crew continuity. (Ibid.) Those are legitimate merit-based concerns independent of any medical condition since she was cleared to return to work and indicated she felt 100%.

Petitioner's

argument that adverse treatment followed a medical incident and leave is not sufficient to show disability discrimination. (Reply, 5:24-26.) Petitioner must actually show that she was discriminated against because of the medical incident. Petitioner might have recited the chronology correctly, but she has not shown causation.

Exercising

its independent judgment, the Court concludes that Petitioner did not prove she suffered from disability discrimination.

D. The alleged retaliation and harassment accusations are not properly before the Court

Petitioner's

opening brief discusses accusations of retaliation and harassment. (OB, 11:5-24.) However, the issues framed for the administrative hearing were

whether Petitioner's discharge during probation was the result of discrimination based on gender, sex, disability, or medical condition in violation of Civil Service Rule 25, and if so, the appropriate remedy. (AR 2168.)

Retaliation

was never a question that was decided by the hearing officer. This Court's job is to review the hearing officer's decision below to ensure that it followed the law. This Court cannot hear new issues that were not raised before the hearing officer.

E. Petitioner's argument that Captain Nieto is not credible is not a persuasive argument

Petitioner

argues that the whole decision rests on a finding that Captain Nieto was credible. (AR 634.)

However,

the decision to fire Petitioner did not rest on Nieto alone. Multiple witnesses testified regarding Petitioner's deficiencies including Captain Singleton, Captain Breen, Battalion Chief Cabrera, and Battalion Chief Aronson. The documentary evidence, including PSRs and the final probation report, also corroborated the Department's performance concerns. (AR 1907-1997.)

Petitioner

identifies alleged inconsistencies regarding issues such as whether Captain Nieto knew the details of CPOE complaints, whether Petitioner received a version of the Month 8 evaluation on May 28, and whether certain drills were formal or practice.

Petitioner

is missing the forest for the trees. Even if the Court accepts Petitioner's view of the record, the record still shows repeated failures to demonstrate minimum competence in critical firefighting duties. (AR 1907-1997).

Petitioner's credibility arguments also ignore the Hearing Officer observed eleven days of testimony, credited the Department's witnesses, and found Petitioner not credible. (AR 634.)

Petitioner's

interpretation of the record is also incorrect. There is no evidence that supports Petitioner's claim that she was given a Month 8 performance evaluation on May 28, 2022. When Captain Singleton met with Petitioner on May 28, 2022, the only documents he provided to Petitioner were the Standards of Behavior, including the social media policy and drugs and alcohol policy. (AR 3380-3382.)

Exercising

its independent judgment, the Court finds that there is not persuasive evidence to find that Captain Nieto was not a credible witness.

F. Petitioner's argument that specific findings of the hearing officer are contradicted by evidence is not persuasive

Petitioner

argues that there are three specific findings that are directly contradicted by the Department's own evidence. This includes findings that 1) Petitioner was unable to complete a basic patient primary medical assessment; 2) Petitioner was unsuccessful in completing her ten month follow up test; and 3) Petitioner's completion time of the second hydrant-position attempt was not good enough. (OB, pgs. 13-14.)

On

the issue of the primary medical assessment: the evidence showed that during an EMS response, Captain Nieto asked Petitioner to reiterate a basic primary assessment to complete the patient care report, evaluate whether the call needed to be upgraded, and request additional resources. (AR 2028; 2908-2911.) Petitioner could not provide a complete primary assessment. (AR 2028; 2908-2911.) That was a legitimate concern because Petitioner was an EMT-certified firefighter expected to provide basic life support services. (AR 2028; 2908-2911.) Petitioner's argument that this finding was unsupported is based on her own account of the incident, which was not consistent with the account of Captain Nieto. (AR 2307-2308.) There was no error in finding Captain Nieto's account more credible.

On

the issue of the second hydrant-position attempt and the ten-month follow-up test: the evidence shows Petitioner failed the hydrant component on her first attempt and could not complete the evolution within the expected timeframe and during a real emergency, her delay could have devastating consequences. (AR 2052-2053; 3204-3214; 3727-3732.) On the second attempt, although she passed,

she still struggled to open the hydrant, used the wrong tools, dropped her gloves in the street, and completed the evolution even more slowly than the first attempt. (AR 2057-58.) Moreover, there was some question as to whether that second test should have been a passing grade, as it appeared to pass only 70 percent of the components, when 80 percent was required. (AR 2330-2331.)

Petitioner

also argues the Department violated CPOE separation principles by allowing Captain Nieto to remain involved after her complaint. But Petitioner does not establish that keeping Captain Nieto involved caused Petitioner's release from probation. Multiple witnesses testified regarding Petitioner's deficiencies including Captain Singleton, Captain Breen, Battalion Chief Cabrera, and Battalion Chief Aronson. (AR 634.) The documentary evidence showed Petitioner was rated unsatisfactory in Drills and Emergency Work, repeatedly failed to demonstrate competency in basic firefighter skills, repeatedly made safety-related errors, failed to timely complete critical evolutions, failed to maintain crew continuity, and required repeated coaching and counseling but did not improve to the level required of a permanent firefighter. (AR 1907-1997.)

Petitioner's

evidence did not undercut these findings. She never introduced any witnesses who could testify in support of her claims. Exercising its independent judgment, the Court concludes that the record fully supports the Fire Department's decision to end her probation.

CONCLUSION

The Court DENIES the petition for writ of mandate.

Pursuant to Local Rule 3.231, subd. (n), the Department shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: August 26,
2026

Joseph

Lipner

Superior

Court Judge